

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANGELICA FIERRO,

Petitioner

VS.

WILLIAM THOMAS WHITEBONE,

Respondent

) Case Number: FDV-19-814812

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On August 16, 2019, Petitioner Mother filed an application for a domestic violence restraining order against Respondent Father. Father opposed the application and on August 12, 2020, a permanent restraining Order was entered against Father, with a termination date of August 6, 2025.
- 2) A paternity judgment was entered on June 24, 2020, concerning the minor child, Cecil B. Whitebone (DOB: 05/05/2013). The parties were awarded joint legal and physical custody.
- 3) On September 25, 2025, Father filed an application for a domestic violence restraining order against Mother. The Court entered a Temporary Restraining Order on September 25, 2025. On November 26, 2025, the Court denied Father's request but entered an Order awarding parenting time to Father from Friday pick up after school to Monday drop off school; alternating every other week commencing 12/5/25; if no school, pick up exchange is at Fillmore police station at 10 am; if no school, Monday drop off at police station at 8 am; starting Saturday 11/29/25 and alternating every Saturday Father to have Cecil from 10-4 pm.

- 1 4) On April 29, 2026, Father filed a Request for Order seeking to modify child custody and
2 visitation and requested joint legal and joint physical custody every weekend from Friday after
3 school until Monday before school. Father alleges Mother interferes with the parenting schedule,
4 keeping Cecil home on his Friday pick up date. Father further alleges Cecil is truant from school
5 and Father wants access to school records.
- 6 5) On June 5, 2026, Mother filed a declaration, which was wholly inadequate. Rather than respond
7 to Father's allegations, Mother attached undated (and perhaps stale) text messages, a photo of
8 herself and outdated information which she previously provided to the Court in prior proceedings.
9 Mother fails to establish by admissible evidence her allegations against Father.
- 10 6) Both parties appeared for mediation on July 9, 2026, but it does not appear that any agreement
11 was reached.
- 12 7) On July 23, 2026, the parties appeared before Visiting Judge Frangie and the Court issued the
13 following orders:
- 14 a. The Court declines to change the legal or physical custody order. Father has not rebutted
15 the presumption of Family Code section 3044, which provides that an award of sole or
16 joint physical or legal custody of a child to a person who has perpetrated domestic
17 violence is detrimental to the best interest of the child.
- 18 b. Notwithstanding the above, Father is entitled to access Cecil's medical and school
19 records and the Court orders this access. Furthermore, there is no order prohibiting Father
20 from going to Cecil's school or attending events there.
- 21 c. The Court finds that neither party has been civil to the other with respect to the best
22 interests of their child. The Court admonishes the parties not to disparage each other and
23 behave civilly moving forward.
- 24 d. The Court orders the parties to attend and complete a co-parenting class and enroll in
25 such and provide proof of completion to the Court within thirty days.
- 26 e. The parties are ordered to communicate with each other via the OurFamilyWizard
27 application.
- 28 f. The Court admonishes parties to encourage Cecil to attend therapy and visitation with
29 Father.

- 1 g. Mother shall provide the minor's therapist and school information to Father. Mother
2 shall call and alert the therapist that Father is permitted to communicate with the therapist
3 and ask for availability with therapist.
- 4 h. The Court finds that Mother is and has interfered with Father's time with Cecil.
- 5 i. Father shall have parenting time with Cecil from 07/23/26 – 07/27/26.
- 6 j. Father shall have makeup time with Cecil starting 08/07/26 until 08/15/26. The parties
7 shall return to the regular parenting schedule after 08/15/26.
- 8 k. The Court sets two **review hearings on 08/18/26 and 11/24/26 at 9 AM in Dept. 403.**
9 Supplemental Declarations are ordered filed and served no later than ten court days prior
10 to the hearing.

11 8) Neither party has filed, as ordered by the Court.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child(ren) is the United States.
- 17 2) Given that neither party filed a supplemental declaration, as ordered by the Court, all current
18 orders shall remain in full force and effect.
- 19 3) The Court finds good cause to vacate its prior order for further review hearings: the hearing
20 calendared on 11/24/26 is hereby vacated.
- 21 4) The Court will prepare the Findings and Order After Hearing.
- 22
- 23
- 24
- 25
- 26
- 27
- 28
- 29